

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 23, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	22CV392899	Sierra Lumber & Fence Co., Inc. vs Aldofina Gonzalez	Motion for Award of Attorney's Fees and Costs Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	24CV452583	Christopher Newman vs City of San Jose California et al	Motion for Summary Judgment/ Adjudication OFF CALENDAR. On July 13, 2026, Plaintiff filed a request to dismiss Defendant City of San Jose only. Defendant City filed this motion on April 30, 2026. No opposition was filed. The motion is rendered moot.
<u>LINE 3</u>	25CV458778	Community Michelle Harper vs The Salvation Army	Demurrer Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	25CV460160	Paul Beckett et al vs Ford Motor Company et al	Petition to Compel Arbitration Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV464797	Rena Roman vs Hyundai Motor America, a California Corp. et al	Petition to Compel Arbitration OFF CALENDAR. On July 17, 2026, the moving party/Hyundai Motor America filed a notice to withdraw the motion as the issue is MOOT.
<u>LINE 6</u>	25CV468980	Staci Santoro vs Ford Motor Co. et al	Motion for Judgment on Pleadings Scroll down to Line 6 for Tentative Ruling.
<u>LINE 7</u>	25CV471472	American Express National Bank vs Rizalino Leon	Motion to Enter Judgment Scroll down to Line 7 for Tentative Ruling.
<u>LINE 8</u>	25CV473890	Alpha Omega House Corp. vs The Board of Trustees of the Leland Stanford Junior University	Demurrer Scroll down to Line 8 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

- 00000 -

9:01 A.M.			
<u>LINE 1</u>	2011-1-CV-202816	Pride Acquisitions, LLC vs B. Tran	Hearing: Return of Warrant Parties to appear.

- 00000 -

9:00 A.M.

Calendar Line # 1

Case Name Sierra Lumber & Fence Co., Inc. vs Aldofina Gonzalez

Case No. 22CV392899

Motion for Award of Attorney's Fees and Costs

I. BACKGROUND

This case stems from a January 3, 2022, Complaint involving a breach of contract, general, and foreclosure of mechanic's liens. (Complaint). Plaintiff Sierra Lumber & Fence Company, Inc. ("Sierra") sought an entry of default judgment against Defendant Aldofina Gonzalez ("Gonzalez") on March 4, 2022. The Honorable Sunil Kulkarni entered default judgment on July 19, 2023 for Plaintiff and against the defendant in the amount of \$10,453.84, which comprised of \$6,791.00 in underlying damages; \$1,207.47 in attorney's fees; \$1,105.33 in costs; and \$1,350.05 in pre-judgment interest set at 18% per contract. (Default Judgment). On January 19, 2024, notice was filed that Pacific State Industries, Inc. ("Pacific") was assigned the judgment. (Notice of Assignment of Judgment). On March 22, 2024, the Honorable Socrates Manoukian authorized an enforcement of judgment and awarded post-judgment attorney's fees as well as \$1,000.00 to plaintiff's counsel.

Memorandum of costs were filed regarding attorney's fees and costs on March 25, 2024 and an amended memorandum of costs on April 12, 2024 seeking \$13,600.86 comprised of \$10,463.89 in attorney's fees and \$2,390.51 in costs for filing fee, postage, clerk's fee, recorder fees, copies, and process servers. Subsequent motions for an order turning over and authorizing the levy were filed and granted. On September 9, 2024, the Honorable Shella Deen authorized a notice of entry of judgment and ordered the debtor to serve code-compliant post-judgment interrogatories within fifteen days. Pacific then filed a motion for sanctions for the debtor's failure to comply with the court's September 9, 2024 order, and on December 12, 2024, Judge Deen authorized sanctions in the amount of \$2,035.00 against the debtor. On November 6, 2025, Judge Deen issued a \$1,500.00 bench warrant for the defendant's failure to appear for an order for examination ("OEX"). The warrant was issued on January 26, 2026. On June 4, 2026, Defendant appeared and was served with another OEX and was ordered to appear at the next court date.

Before the Court is Plaintiff Sierra Lumber & Fence Company, Inc.'s ("Sierra") motion for award of attorney's fees and costs arising from enforcing a judgment. On November 12, 2025, Plaintiff Sierra filed this motion and the motion was accompanied by a proof of service indicating mail and electronic service to Defendant Aldofina Gonzalez on that same day. On June 9, 2026, Plaintiff filed a second supplemental declaration in support of the amended motion for updated attorney's fees and cost, which was filed on June 16, 2026. The Declaration and motion was accompanied by a proofs of services indicating electronic mail service on the respective filing dates.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 10, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: moving papers, including: notice of motion for attorney's fees and costs (totaling 3 pages); memorandum of points and authorities in support of the plaintiff's motion (totaling 6 pages); Declaration of Joseph P. Thompson in support of plaintiff's motion and attached Exhibits JJ-TT (totaling 72 pages); Supplemental Declaration of Thompson in support of the motion and attached Exhibits UU-WW (totaling 42 pages); Plaintiff's Amended Motion for attorney's fees and costs (totaling 5 pages); Declaration of